

HOUSE BILL 355

By Powers

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to virtual school students.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 16, Part 2, is amended by adding the following as a new section:

(a) If a public school established under the jurisdiction of an LEA is a member of an organization or an association that regulates interscholastic athletic competition, and if such organization or association establishes or maintains eligibility requirements for virtual school students to participate in interscholastic athletics at a member school, then the LEA shall permit participation in interscholastic athletics at the member schools by a virtual school student who satisfies the eligibility requirements established by the organization or association.

(b) If a public school established under the jurisdiction of an LEA offers students the opportunity to participate in interscholastic athletic competition without the school being a member of an organization or an association that regulates interscholastic athletic competition, then the LEA shall permit participation in interscholastic athletics at such school by a virtual school student who is zoned and is otherwise eligible to attend the school.

(c) This section does not guarantee that a virtual school student trying out for an interscholastic athletics team will make the team, nor does it supplant the authority of coaches or other school officials in deciding who makes the team. This section is intended to guarantee only that the virtual school student is not prohibited from trying out

for an interscholastic athletics team, if the student is otherwise eligible to participate under the rules of the organization or association, solely by reason of the student's status as a virtual school student.

(d) This section must not be construed to limit or supplant the authority of the organization or association to determine eligibility and to establish, modify, and enforce its rules and eligibility requirements, including those applicable to virtual school students.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.